Ballot Measure No. 2 - 24ESEG

An Act Restoring Political Party Primaries, Ending Ranked-Choice General Elections, and Repealing Recent Campaign Finance Laws

Ballot Language

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This act would get rid of open primary elections, where all candidates appear on one ballot. It would also get rid of ranked-choice general elections. It would bring back political party primaries and single-choice general elections. It would also repeal certain campaign finance rules that were added by a 2020 ballot measure.

Elections would occur as they did before open primaries and ranked choice voting. In the primary election, voters would choose a party's ballot, unless prohibited by the party's bylaws. They would only vote for candidates on that ballot. The winning candidate from each primary would be the party's nominee. In the general election, voters would vote for only one candidate in each race. The candidate with the most votes would win. Party petitions, special runoff elections, and other processes would return. Candidates for governor and lieutenant governor would run separately in political party primaries and then together in the general election.

This act would also repeal campaign finance rules that were passed in 2020. It would remove the limits on donations to joint campaigns for governor and lieutenant governor. It would remove limits and disclosure rules under current law, including for digital ads, out-of-state donations, undisclosed donations, and the true source of donations. It would change the meaning of a campaign expenditure and remove some fines.

Should this initiative become law?

◯ Yes ◯ No

Legislative Affairs Agency Summary

This Act will reverse changes made by voters in 2020 to state elections.

The Act changes the rules for primary elections. The Act ends the top four open primary. The primary will be a party primary. The director of elections will make a ballot for each party. Each party ballot will list the candidates running for that party's nomination.

The Act changes the campaign finance rules. The Act removes limits on contributions to a joint campaign for governor and lieutenant governor. The Act allows entities to accept more than $2,000 in dark money. The Act lets people contribute money through a third party without disclosing the true source. The Act ends a requirement that a "paid for by" message appear during the entirety of a communication. The Act ends a requirement that a disclaimer appear on ads paid for by an outside source.

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A party will choose who may run and vote in its primary. In the primary a voter may vote only one party's ballot. The person who gets the most votes in a party primary is the party's nominee. The party nominees will move on to the general election. Other candidates may petition to be on the general election ballot. Reenacts unconstitutional law that a candidate must register as a member of a political party to run in that party's primary. Reenacts unconstitutional laws requiring a separate ballot for each political party.

The Act changes the process used to fill vacancies in office. The Act ends special primaries. A party will use a petition to nominate its candidate for a special election to fill a vacancy. Other candidates may petition to be on the ballot. The Act adds a special runoff to some races. The Act sets the timeframes for special elections and special runoff elections. The governor will call a special runoff if no candidate in a special election for congress gets more than half the votes. A ballot measure may appear on a special runoff ballot. When the governor appoints a person to fill a vacancy in the state legislature, the governor will appoint a member of the same party, if any, that nominated the predecessor.

The Act changes the ballot for general elections. The ballot will show a candidate's party designation, if any. Write-in candidates for governor and lieutenant governor will be members of the same party or group. The Act changes voting in general elections. The Act ends ranked-choice voting. A voter will vote for one candidate for each office; the candidate with the most votes wins.

The Act will change the definition of "political party". Members of the governor's party and members of the party that received the second most votes in the last election for governor will serve on some state boards. The Governor must appoint two members of the Alaska Public Offices Commission from lists made by these parties. A candidate may appoint a poll watcher if the candidate does not represent a party.

Statement of Costs

Multi Agency Cost Summary

Agency	Cost
Alaska Public Offices Commission	$6,975
Office of the Lieutenant Governor	$15,000
Office of the Lieutenant Governor – Division of Elections	$2,608,983
TOTAL	**$2,630,958**

Estimate of Costs to the Alaska Public Offices Commission

As required by AS 15.45.090(a)(4), the Alaska Public Offices Commission (APOC) has prepared the following statement of costs to implement the proposed ballot initiative.

The proposed initiative seeks to repeal provisions of Ballot Measure 2 passed by voters in the 2020 state general election. If passed the initiative would repeal certain reporting requirements for persons engaged in independent expenditure activities and their contributors; and certain identifier requirements for political communications.

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Approximately 60 programming hours will be required to design, test, and deploy changes to the agency's online filing program. Estimated Cost: ~$3,975

Approximately 30 staff hours will be required to revise, publish notice, and adopt regulations needed to implement the measure. Estimated Cost: ~$3,000

Estimated cost to amend APOC's online filing program and adopt new regulations **$6,975**

Estimate of Costs to the Office of the Lieutenant Governor and the Division of Elections

As required by AS 15.45.090(a)(3), the Office of the Lieutenant Governor and the Division of Elections has prepared the following statement of costs to implement the proposed ballot initiative.

Lieutenant Governor

Under Alaska Statute 15.45.195, at least 30 days before the election at which an initiative is to appear on the ballot, the lieutenant governor or a designee of the lieutenant governor shall hold two or more public hearings concerning the initiative in each judicial district of the state. Each public hearing under this section shall include the written or oral testimony of one supporter and one opponent of the initiative.

Estimated cost of travel and LIO services for Lt. Governor and one staff member **$15,000**

Division of Elections

The minimum cost to the Division of Elections associated with certification of the initiative application and review of the initiative petition, excluding legal costs to the state and the costs to the state of any challenge to the validity of the petition, is estimated to be $2,608,983.

Estimate by Category

Personal Services	$81,626
Printing Services	$1,505
Voter Education	$2,500,000
Language Assistance	$25,852
TOTAL	$2,608,983

Analysis of Fiscal Impact of Ballot Initiative

Initiative Petition Review
Personal Services: Six temporary employees to review signatures for 2,520 hours.
Estimated cost: $57,312

Certification of the initiative application and review of the initiative petition estimated for 504 hours.
Estimated cost: $24,314.

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Printing Services: Printing service expenses associated with certification of the initiative application and review of initiative petition.
Printing of voter booklets: $1,505

Public Education Campaign
A public education campaign will need to take place to inform candidates, voters, and election workers of the changes to the primary and general election processes.

Estimated cost: $2,500,000

Language Assistance
Estimated cost of translating the ballot measure language for audio and sample ballots and, Official Election Pamphlet pro statement, Official Election Pamphlet con statement and Official Election Pamphlet neutral summary into languages required by the Toyukak Settlement and Section 203 of the Federal Voting Rights Act.

Estimated cost: $25,852

TOTAL all categories: $2,630,958